

3.

CASE #	CASE NAME	HEARING NAME
CVRI2305571	CAMACHO GODINEZ VS SANDOVAL	MOTION TO BE RELIEVED AS COUNSEL FOR ERNESTO ANTONIO CAMACHO GODINEZ

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2405163	SUNGA VS ANSTAETT	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

GRANTED.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2406558	HOSSENI VS PHILLIP PFEIFER	DEMURRER

Tentative Ruling:

The Court OVERRULES the special demurrers. The Court SUSTAINS the general demurrer to the 2nd cause of action with 30 days leave to amend. The Court SUSTAINS the general demurrer to the 6th causes of action without leave to amend.

Factual / Procedural Context:

Plaintiffs Seyed Farshid Hosseini and First Quality Builds, LLC allege that Hosseini and his wife moved from Washington to California based on a pre-approval mortgage that was supposed to be in his name; however, the loan ended up being in his company's name, First Quality Builds. He alleges Defendants treated him as the true borrower, including issuing him an IRS Form 1098 mortgage interest statement to him personally. Plaintiff fell into financial hardship in 2023, and applied to the California Mortgage Relief program, yet Defendants continued the foreclosure process resulting in a nonjudicial foreclosure sale on 10/24/24. The Second Amended Complaint asserts causes of action for: (1) wrongful foreclosure; (2) violation of Homeowner Bill of Rights; (3) unfair competition; (4) breach of the covenant of good faith and fair dealing; (5) quiet title; and (6) declaratory relief.
